

		Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
113	Regalado Contreras vs. Inmar Supply Chain Solutions, LLC 2024-01444626	Motion for Preliminary Approval of Class and PAGA Settlement Plaintiff Mario Regalado Contreras’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to July 23, 2026, at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 12/6/2024, Plaintiff Mario Regalado Contreras, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant. (ROA #2.) On 2/10/2025, Plaintiff filed a first amended complaint to add a cause of action for PAGA penalties. (ROA #17.) The operative complaint is the second amended complaint, filed on 11/4/2025 pursuant to the parties’ stipulation and the Court’s order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #73.) On 11/3/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Stipulation of Class and PAGA Settlement (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$160,000. The GSA includes \$10,000 allocated for PAGA penalties. The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. Class Members must have the option of submitting requests for exclusion, objections, and workweek disputes by fax and email in addition to by mail. 2. The deadline for responses to the Class Notice (i.e., opt outs, objections, and workweek disputes) after remailing is too short and should be at least 30 days after remailing.

3. The Settlement Agreement should specify that the Court's continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).

Class Counsel must also provide the Court with a revised Class Notice with the following revisions:

4. The notice should be revised so as to be consistent with the resolution of the issues identified above.
5. On p. 2, counsel Paul K. Haines of Haines Law Group, APC should be listed among the attorneys for Plaintiff / Settlement Class Members, as the motion seeks Haines's appointment as Class Counsel.
6. The paragraph relating to appearing at the Court and complying with COVID restrictions should be removed, especially since the URL provided for relevant rules and orders does not work.
7. The URL provided for remote appearance also does not work.
8. The notice should provide a URL to a website, maintained by the settlement administrator or plaintiff's counsel, that has links to the notice and key case documents.
9. The notice should specify that the judgment, "whether favorable or not," will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).)

Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions:

10. The proposed order should be revised to incorporate the relevant revisions identified above, including attaching the revised Settlement Agreement and a revised Class Notice.
11. The title of the document should add "and PAGA" between "Class Action" and "Settlement."
12. The date for the preliminary approval hearing should be updated to reference the continued hearing date.
13. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
14. All terms that require definition must either be defined in the proposed order itself or clearly incorporate by reference definitions found elsewhere in the record.
15. The proposed order should specify the amounts proposed to be allocated from the GSA to attorneys' fees, litigation costs, enhancement(s), administration costs, and PAGA penalties (including to the LWDA and to Aggrieved Employees).
16. Counsel should not leave blank but should instead propose a realistic Final Approval hearing date, taking into account the deadlines associated with mailing and remailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys' fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff's declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All

		supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date. 17. The correct address of this Court should be listed in ¶ 13. 18. The proposed order should specify the Court’s continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
114	Coleman vs. Resurgence Behavioral Health LLC a Nevada corporation 2021-01225871	1. Motion for Preliminary Approval of Class and PAGA Settlement 2. Order to Show Cause re: Monetary Sanctions The Court has reviewed the supplemental materials provided by Class Counsel and finds that with a couple of exceptions, they adequately address the previously identified issues. Accordingly, Plaintiff Rebecca Coleman’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending submission of (1) a further amendment to the Settlement Agreement addressing the below identified issue with ¶ 7.4.4; (2) a further declaration from Class Counsel addressing the Class Notice language issue; and (3) a further revised proposed order. This is a putative wage-and-hour class action and PAGA matter. On 10/12/2021, Plaintiff Rebecca Coleman, individually and on behalf of other members of the general public similarly situated (“Plaintiff”), filed a Class Action Complaint against Defendants Resurgence Behavioral Health, LLC; Resurgence California, LLC; A New Start Treatment and Recovery Center, LLC dba Muse Treatment; Advanced Recovery Solution, LLC; Balboa Horizons Recovery Services; and The Well Recovery Partners (together, “Defendants”). The Complaint asserts nine (9) causes of action for various violations of the Labor Code’s wage-and-hour provisions. On 7/3/2023, pursuant to stipulation and order, Plaintiff filed the operative First Amended Class Action Complaint for Damages and Enforcement Under the Private Attorneys General Act (“FAC”) wherein she added causes of action for Violation of Business & Professions Code §§ 17200, et seq., and PAGA penalties. Defendants answered on 8/7/2023. On 11/2/2023, pursuant to stipulation and order,